



EVL1 — Introduction to Evidence and Proof

Module 1 — Introduction to Evidence Law

Lesson 2: Legal Classification of Law

Student Lesson Notes

SUBSTANTIVE LAW VS ADJECTIVAL LAW

Opening Scenario

Imagine two neighbours in Kampala. One accuses the other of stealing his goats. He goes to the magistrate's court and says he wants justice. Two immediate questions arise:

- Is stealing goats a legal wrong? — The answer comes from the Penal Code Act Cap. 128, which defines theft as a criminal offence. That is substantive law at work.
- How does the court actually determine whether the goats were stolen and by whom? — The answers come from the Evidence Act Cap. 8 and the Magistrates Courts Act Cap. 19. That is adjectival law at work.

Both types of law are essential. Without substantive law, there is no legal wrong to address. Without adjectival law, there is no reliable way to determine whether that wrong actually occurred.

What is Substantive Law?

Substantive law is the body of law that defines legal rights, duties, and obligations. It tells us what the law says about how people must behave toward each other and what consequences follow when that behaviour falls short.

Substantive law answers the question: what is the law?

Penal Code Act Cap. 128: Defines criminal offences — murder, theft, rape, fraud — and prescribes punishments.

Contracts Act Cap. 284: Defines what makes a contract valid, what constitutes breach, and what remedies are available.

Land Act Cap. 236: Defines types of land tenure in Uganda and rights of occupancy.

Succession Act Cap. 268: Defines how a deceased person's estate is distributed among heirs.

What is Adjectival Law?

Adjectival law — also called procedural law — is the body of law that governs how legal rights and obligations are enforced in court. It does not create rights or define offences. Instead it sets out the machinery through which substantive law is applied in real disputes.

Adjectival law answers the question: how is the law enforced?

Evidence Act Cap. 8: Governs how facts are proved in court, what evidence is admissible, who can testify, how documents are treated.

Civil Procedure Act Cap. 282: Governs how civil cases are started, conducted, and concluded in Ugandan courts.

Trial on Indictments Act Cap. 25: Governs how serious criminal cases are tried before the High Court of Uganda.

Magistrates Courts Act Cap. 19: Governs proceedings before magistrates courts.

WHY EVIDENCE LAW IS PROCEDURAL LAW

Evidence Law Creates No Rights

The clearest way to understand why Evidence Law is procedural is to ask: does the Evidence Act Cap. 8 create any legal rights or obligations that exist independently of court proceedings?

The answer is no. The Evidence Act Cap. 8 does not make any conduct legal or illegal. It does not tell anyone how to behave in their daily life. It does not create rights that citizens can enforce against each other outside a courtroom. It only becomes relevant once a dispute reaches a court or tribunal.

Compare this to the Contracts Act Cap. 284, which creates a right — the right to sue for breach of a valid contract. That right exists whether or not a case ever reaches court. The Evidence Act Cap. 8 by contrast has nothing to say until the parties are actually before a court.

Evidence Law Governs Process Not Substance

Consider a murder charge under Section 188 of the Penal Code Act Cap. 128. The substantive law defines murder and prescribes the penalty. The Evidence Act Cap. 8 then governs every procedural question that arises during the trial — what witnesses can testify, whether a dying declaration can be admitted, whether a confession made to a police officer is admissible, and what standard of proof applies.

None of those evidence questions change what murder means. They only determine how the facts are established.

Practical Significance for Advocates and Students

Understanding this classification has direct practical implications:

- For advocates — evidence objections are always procedural objections. When you rise in court to object to a piece of evidence, you are not saying the other side's substantive legal position is wrong. You are saying their method of proving it does not comply with the Evidence Act Cap. 8.
- For judges and magistrates — errors in applying evidence rules are procedural errors, reviewable and correctable on appeal without necessarily changing the underlying substantive outcome.
- For students — when you study evidence law, you are studying the machinery of courts, not the substance of rights. This is a different kind of legal thinking — more technical, more process-oriented — but no less important.

IMPORTANCE OF CLASSIFICATION IN PRACTICE

It Determines Which Statute Applies

When a legal question arises in a Ugandan court, the first task is identifying which statute governs it. If the question is whether conduct was lawful or criminal, the answer lies in a substantive statute such as the Penal Code Act Cap. 128. If the question is whether a particular piece of evidence should be admitted or excluded, the answer lies in the Evidence Act Cap. 8.

Getting this wrong at the beginning of an analysis leads to citing the wrong statute, making the wrong argument, and ultimately losing a point that should have been won.

It Determines the Grounds for Appeal

In Ugandan appellate practice, grounds of appeal must specify the type of error the trial court made. Errors of substantive law — for example, misinterpreting what constitutes murder under the Penal Code Act Cap. 128 — are different from errors of adjectival law — for example, wrongly admitting a confession that should have been excluded under the Evidence Act Cap. 8.

An appellant who frames an evidence error as a substantive law error, or vice versa, may find their ground of appeal rejected as improperly framed before it is even considered on the merits.

Practical Example — Land Dispute in Uganda

Consider a land dispute before a magistrate's court in Wakiso District. One party claims ownership of land under the Land Act Cap. 236 (substantive law). The other party disputes this.

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The substantive question: who has the legal right to this land under the Land Act Cap. 236?

The adjectival questions: What documents can be produced to prove ownership? Can oral testimony about long possession be admitted? Who bears the burden of proving ownership?

Every adjectival question is answered by the Evidence Act Cap. 8 and the Civil Procedure Act Cap. 282. A lawyer who cannot navigate both the substantive and adjectival dimensions simultaneously will not serve their client well.

LESSON SUMMARY — KEY POINTS

- ✓ Law is divided into substantive law (defines rights and obligations) and adjectival law (governs how rights are enforced in court)
- ✓ Substantive law answers: what does the law say? — Penal Code Act Cap. 128, Contracts Act Cap. 284, Land Act Cap. 236
- ✓ Adjectival law answers: how is the law applied? — Evidence Act Cap. 8, Civil Procedure Act Cap. 282, Trial on Indictments Act Cap. 25
- ✓ Evidence Law is adjectival — it creates no independent rights or obligations outside court proceedings
- ✓ Evidence objections in court are always procedural (adjectival) objections — not substantive ones
- ✓ Wrongly admitting or excluding evidence is an error of adjectival law, reviewable on appeal
- ✓ Competent Ugandan lawyers must be able to identify and work with both types of law simultaneously

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. What is the difference between substantive law and adjectival law? Give one Ugandan example of each.
2. A lawyer in court objects to a document being admitted as evidence. Is this a substantive or adjectival law objection? Explain.
3. The trial court wrongly admits a confession that should have been excluded. What type of error is this and what is the consequence?
4. In a land dispute, identify one substantive law question and one adjectival law question that would arise.
5. Why does the classification of evidence law as adjectival matter to a Ugandan advocate?